

100 BEAL STREET • THE 37-YEAR TIMELINE

Chronological Record of Land Acquisition, Governance, Litigation, and Senior Affordable Housing



FEE SIMPLE OWNER
Hingham Housing
Auth.



DEVELOPMENT SCOPE
68 Senior Units (Lot B)



GROUND LEASE TERM
99 Years (Triple-Net)



END-OF-TERM RIGHT
100% Reversion to
HHA

1989

STEP 1

Municipal Land Grant & Adolescent Residence

DEED CONVEYANCE

- Town Grant:** Town of Hingham conveys 15-acre surplus School Tract II to HHA (Book 9128, Page 083).
- Youth Residence Covenant:** Initial deed restriction dedicated site for an adolescent community home.
- Lot A Facility:** 12-bed home developed and continuously operated by Bay State Community Services.

2001

STEP 2

Naval Depot Demolition & Joint Municipal Accord

INTER-AGENCY MOU

- Bunker Removal:** Historic WWII ammunition bunker facilities demolished to prepare parcel for community reuse.
- Joint Accord:** Town Selectmen and HHA execute Memorandum of Understanding governing future disposition.
- Housing Master Plan:** Engineering assessments identify surplus upland acreage for town senior housing needs.

2006

STEP 3

Town Meeting Votes Unanimously for Affordable Housing

TOWN MEETING VOTE

- Article 38 Approval:** Hingham Town Meeting votes unanimously to amend original 1989 deed restrictions.
- Senior Housing Authorized:** Formal amendment explicitly authorizes HHA to build senior/affordable housing.
- Statutory Authority:** Reaffirms HHA independent legal authority over municipal housing development on site.

2019

STEP 4

Ownership Challenge & Commonwealth Intervention

LEGAL DETERMINATION

- Select Board Vote:** Select Board votes 3-0 to challenge HHA title and seek municipal reclaim of the land.
- State Confirmation:** State DHCD/EOHLC formally intervenes, ruling HHA holds exclusive fee simple ownership.
- Statutory Restriction:** Commonwealth records permanent M.G.L. c. 121B public housing restriction on deed.

2024

STEP 5

Conservation Commission Approves Wetland Boundary

ANRAD (5-0 VOTE)

- 5-0 Vote:** Conservation Commission unanimously approves ANRAD resource delineation (WPA Form 4B).
- Upland Delineated:** Establishes buildable footprint while protecting 100-foot wetland and stream buffer zones.
- Bare Cove Buffer:** Guarantees strict environmental protections for adjacent municipal forest trails.

2025

STEP 6

HHA Awards 68-Unit Development to Peabody Properties

RFP AWARD (5-0 VOTE)

- Developer Selected:** HHA Board unanimously awards RFP to Peabody Properties & AHSC Developers LLC.
- Affordable Senior Profile:** 3-story, 68-unit residence restricted to seniors at 30%, 50%, and 60% of AMI.
- Financial Commitment:** Developer guarantees minimum \$500,000 upfront payment + annual ground lease rent.

2026

STEP 7

LDDA Executed & 99-Year Ground Lease Framework

LDDA (5-0 VOTE)

- Contract Approved:** HHA executes Land Disposition & Development Agreement on August 25, 2026.
- 99-Year Lease Terms:** Absolute triple-net lease runs from closing (~2027/28) to ~2126/27 with full reversion.
- Comprehensive Permitting:** Chapter 40B permitting initiated with maximum Hingham resident preference.



99-YEAR GROUND LEASE KEY COVENANTS & STATUTORY PROTECTIONS

TERM: ~2027/2028 TO
~2126/2127

COMMENCEMENT DATE

~2027 / 2028

Triggers only upon closing of construction loans & unappealable 40B permit.

LEASE STRUCTURE

Absolute Triple-Net (NNN)

Tenant pays all taxes, insurance, repairs & utilities. Zero public expense.

AFFORDABILITY MANDATE

100% Senior SHI

Permanent c. 184 § 31 restriction recorded senior to any lender mortgages.

PUBLIC REVERSION

100% at Year 99

Building and grounds surrender peacefully to HHA at zero cost to the Town.



Statutory Protection Covenant (Section 15.1): At the conclusion of the 99-year term, full fee title to the 68-unit building and all site improvements automatically vests in the Hingham Housing Authority. Lot A (adolescent group home) remains excluded and permanently preserved under separate HHA ownership.